

19PSCV00880 19PSCV00880

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Case Number: 19PSCV00880 Hearing Date: August 26, 2026 Dept: G

Plaintiff William Loo's Motion for Leave to File First Amended Complaint

Respondent: Defendant M. Zha

Defendant M. Zha's Motion to Dismiss Plaintiff William Loo's Complaint

Respondent: Plaintiff William Loo

TENTATIVE RULING

Plaintiff William Loo's Motion for Leave to File First Amended Complaint is GRANTED.

Defendant M. Zha's Motion to Dismiss Plaintiff William Loo's Complaint is DENIED.

BACKGROUND

This is an action for quiet title. Defendant Xixi Li (Li) allegedly collaborated with other defendants to forge the names of plaintiffs Tony Tochong Loo, Cuiping Loo, Danny Loo, and William Loo (collectively, the Loos) and notarize false powers of attorney and deeds of trust to obtain loans. Defendant M. Zha (Zha) allegedly notarized the fraudulent documents.

On October 2, 2019, Tony Tochong Loo, Cuiping Loo, and Danny Loo filed a Complaint (case no. 19PSCV00880), alleging causes of action for (1) declaratory relief, (2) cancellation of instruments, (3) slander of title, (4) quiet title, and (5) unjust enrichment. The same day, William Loo filed a Complaint (19PSCV00882), alleging the same causes of action. The court subsequently consolidated the Loos' cases.

On July 22, 2026, William Loo filed the motion to file an amended complaint. On August 13, 2026, Zha filed the opposition, and on August 14, 2026, William Loo filed the reply.

On July 28, 2026, Zha filed the motion to dismiss. On August 11, 2026, William Loo filed the opposition, and on August 19, 2026, Zha filed the reply.

This case is set for a case management conference/trial setting conference and a hearing on the motions on August 26, 2026. The court notes that the motion for leave specifies that the proposed Amended Complaint will replace only the Complaint filed by William Loo, and the motion to dismiss specifies that it seeks to dismiss only the Complaint filed by William Loo.

REQUESTS FOR JUDICIAL NOTICE

William Loo requests that the court take judicial notice of its own records. The court may take judicial notice of the records of any California court, including its own. (Evid. Code, § 452, subd. (d)(1).) Thus, the court takes judicial notice of its own records.

MOTION FOR LEAVE TO FILE AN AMENDED COMPLAINT

William Loo seeks leave to file a proposed Amended Complaint, which narrows the action to two causes of action asserted against Zha. For the following reasons, the motion is GRANTED.

Legal Standard

"A court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading." (Code Civ. Proc., § 473, subd. (a)(1).) The court's discretion will usually be exercised liberally to permit amendments of the pleadings. (See *Nestle v. City of Santa Monica* (1972) 6 Cal.3d 920, 939.) "A motion to amend a pleading before trial must . . . [s]tate what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph, and line number, the deleted allegations are located; and [s]tate what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located." (Cal. Rules of Court, rule 3.1324(a).) The motion must include a declaration that specifies the amendment's effect, why it is necessary and proper, when the facts supporting the amended allegations were discovered, and why the request was not made earlier. (See Cal. Rules of Court, rule 3.1324(b).)

Nevertheless, even where a moving party complies with the requirements of Rule 3.1324 and such proposed amendment is proper, leave to amend is not an absolute right. (See *In re Marriage of Liss* (1992) 10 Cal.App.4th 1426, 1429, noting, "Of course, a trial court also has discretion to deny amendments to pleadings if amendment would not be in furtherance of justice.") A court may properly deny amendment based on several factors, including the bad faith conduct of the moving party, the belated presentation of the amendment, or the futility of the amendment. (See *Leader v. Health Industries of America, Inc.* (2001) 89 Cal.App.4th 603, 613; see also *Jenkins v. JP Morgan Chase Bank, North America* (2013) 216 Cal.App.4th 497, 535, suggesting that the court deny leave to amend based on futility where the facts are not in dispute and no liability exists under substantive law; see, e.g., *Hirsa v. Super. Ct.* (1981) 118 Cal.App.3d 486, 490, holding that the court may deny leave to amend if the moving party needlessly delayed, which prejudiced the opposing party.) Further, leave to amend must be denied where prejudice is shown to the adverse party. (*Miles v. City of Los Angeles* (2020) 56 Cal.App.5th 728, 739.) Prejudice exists where the amendment would require delaying the trial, resulting in loss of critical evidence, or added costs of preparation, including the completion of additional discovery. (*Solit v. Tokai Bank, Limited N.Y. Branch* (1999) 68 Cal.App.4th 1435, 1448; see also *Miles*, *supra*, at 739.)

Discussion

William Loo argues that the court should permit him to file the proposed Amended Complaint. The court agrees.

As stated above, a party seeking leave to file an amended pleading must satisfy California Rules of Court, rule 3.1324, which requires the party's motion and supporting declaration to (1) provide a copy of the proposed pleading, (2) specify the allegations proposed to be deleted and added, (3) explain the amendment's effect and why amendment is necessary and

proper, and (4) explain the circumstances surrounding the discovery of the facts supporting amendment and why amendment was not made sooner. (See Cal. Rules of Court, rule 3.1324(a)–(b).)

William Loo's declaration explains that the proposed Amended Complaint will assert two causes of action against Zha, that the amendments clarify Zha's role in the alleged wrongdoing, and that William Loo did not seek amendment sooner because Zha did not participate in this litigation. (See William Loo Decl., ¶¶ 23–24, 30; see also Cal. Rules of Court, Rule 3.1324(b).) The declaration also specifies that the amendments are based on new facts concerning fingerprints and identity verification performed during the notarization, which William Loo learned from responses to subpoenas in April 2026. (See William Loo Decl., ¶¶ 26–27.) The motion also identifies the specific additions and deletions that differentiate the Amended Complaint from the original Complaint, as required by Rule 3.1324(a). (See Mot. Leave, pp. 2–3.) Thus, the motion complies with Rule 3.1324, and the court may permit him to file the proposed Amended Complaint, unless amendment is not in the furtherance of justice.

Even where a party satisfies the procedural requirements of Rule 3.1324, the court must also determine whether permitting amendment is in the furtherance of justice. (See *In re Marriage of Liss*, supra, 10 Cal.App.4th at 1429.) There is a judicial preference in favor of permitting amendments of the pleadings. (*Nestle*, supra, 6 Cal.3d 939.) However, as stated above, the court may deny amendment in cases of bad faith, unreasonable delay, or futility and must deny amendment where it would prejudice the adverse party. (See *Leader*, supra, 89 Cal.App.4th at 613; see also *Miles*, supra, 56 Cal.App.5th at 739.)

Here, Zha contends that permitting amendment seven years after the underlying transaction and original Complaint is prejudicial, as Zha would have to “retool the defense” and “address a new liability theory.” (Opp., p. 10.) However, Zha repeatedly mentions that William Loo's claims arise from the “same transaction.” (See, e.g., Opp., pp. 11–12.) Even though one of the asserted theories of liability is new, Zha's alleged conduct is not new, and as such, the court finds the alleged prejudice is not substantial. Zha also highlights that this is William Loo's third attempt to amend the original Complaint. (See Opp., pp. 1, 9, 11.) Even so, the fact that previous motions suffered procedural deficiencies does not demonstrate that the amendment is without merit or is futile, especially after the procedural deficiencies are cured. Thus, acknowledging the judicial preference permitting amendment, the court finds that allowing William Loo to file the proposed Amended Complaint is in the furtherance of justice.

Therefore, the motion for leave to file an amended complaint is GRANTED. Loo is order to file the Amended Complaint separately, forthwith.

MOTION TO DISMISS

Zha requests dismissal based on the failure to serve her in this action, or alternatively, for the failure to bring this action to trial. For the following reasons, the motion is DENIED.

Dismissal Based on the Failure to Timely Serve Complaint

Legal Standard

“The summons and complaint shall be served upon a defendant within three years after the action is commenced against the defendant. . . . [A]n action is commenced at the time the complaint is filed.” (Code Civ. Proc., § 583.210, subd. (a).) In computing the time within which service must be made, the court will not consider time during which (a) the defendant was not amenable to the process of the court, (b) a stay in the action affected service, (c) the validity of service was the subject of litigation by the parties, or (d) service was impossible, impracticable, or futile due to causes beyond the plaintiff's control. (See Code Civ. Proc., § 583.240, subds. (a)–(d).) “Failure to discover relevant facts or evidence is not a cause beyond the plaintiff's control. . . .” (Code Civ. Proc., § 583.240, subd. (d).) “The parties may extend the time within which service must be made” by stipulation or by oral agreement in open court. (Code Civ. Proc., § 583.230, subds. (a)–(b).) “If service is not made in an action within the time prescribed . . . [then] (1) [t]he action shall not be further prosecuted and no further proceedings shall be held in the action, [and] (2) [t]he action shall be dismissed by the court on its own motion or on motion of any person

interested in the action, whether named as a party or not, after notice to the parties.” (Code Civ. Proc., § 583.250, subd. (a).) “The requirements of [Section 583.210 to Section 583.250] are mandatory and are not subject to extension, excuse, or exception except as expressly provided by statute.” (Code Civ. Proc., § 583.250, subd. (b).)

Discussion

Zha argues that William Loo failed to serve her with the Complaint within three years. The court disagrees.

As stated above, a plaintiff must generally serve a defendant within three years, excluding the time when the defendant avoided service, when there was a stay in the action, when the parties disputed service, or when service was impossible, impracticable, or futile. (See Code Civ. Proc., §§ 583.210, subd. (a); 583.240, subd. (d).)

William Loo filed his Complaint on October 2, 2019. (See W. Loo Compl., p. 1.) William Loo attempted to serve Zha by substituted service on January 22, 2020, but the court found on May 14, 2025 that “Zha was not properly served.” (5/14/2025 Order Re: Court’s Final Tentative Ruling, p. 7; see also 1/31/2020 POS, pp. 1–2, describing the attempted substituted service.) Loo attempted to serve Zha again by substituted service on September 11, 2025, and Zha concedes that this service was valid. (See 9/15/2025 POS, pp. 1–2, describing the substituted service; see also Mot. Dismiss, p. 5, stating, “valid service was not completed . . . until late 2025 at the earliest.”) (The parties also discuss the service of a deposition subpoena in 2024, but the court does not find that the service of that document bears on its analysis under Sections 583.210 and 583.240.)

Service was impracticable, futile, and disputed between the date William Loo first attempted service to the date the court set aside Zha’s entry of default. In other words, to calculate the three-year statutory period for timely service, the court counts the time between the date the Complaint was filed to the date William Loo first attempted service plus the time between the date the court set aside Zha’s entry of default to the date William Loo successfully served Zha. The time between the date William Loo filed the Complaint to the date William Loo first attempted service was 112 days. The time between the date the court set aside Zha’s entry of default to the date William Loo successfully served Zha was 120 days. Excluding the time the parties disputed service and time when service was impracticable or futile, only 232 days passed before William Loo served Zha. Thus, the court finds that Loo timely served Zha with the Complaint pursuant to Sections 583.210 and 583.240.

Therefore, the motion to dismiss based on the failure to timely serve the Complaint is DENIED.

Dismissal Based on the Failure to Timely Bring to Trial

Legal Standard

“An action shall be brought to trial within five years after the action is commenced against the defendant.” (Code Civ. Proc., § 583.310.) In computing the time within which the action must be brought to trial, the court will not consider time during which (a) the jurisdiction of the court to try the action was suspended, (b) prosecution of the action was stayed or enjoined, or (c) bringing the action to trial was impossible, impracticable, or futile. (See Code Civ. Proc., § 583.340, subds. (a)–(c).) “The parties may extend the time within which an action must be brought to trial” by stipulation or by oral agreement in open court. (Code Civ. Proc., § 583.330, subds. (a)–(b).) “[I]f the action is not brought to trial within the time prescribed,” then “[the] action shall be dismissed by the court on its own motion or on motion of the defendant, after notice to the parties.” (Code Civ. Proc., § 583.360, subd. (a).) “The requirements of [Section 583.310 to 583.360] are mandatory and are not subject to extension, excuse, or exception except as expressly provided by statute.” (Code Civ. Proc., § 583.360, subd. (b).)

Discussion

Zha argues that William Loo failed to bring the action to trial within five years. The court disagrees.

As stated above, a plaintiff must generally bring an action to trial within five years, excluding the time when the court's jurisdiction was suspended, when there was a stay in the action, or when trial was impossible, impracticable, or futile. (See Code Civ. Proc., §§ 583.310; 583.340.)

Here, William Loo filed his Complaint on October 2, 2019. (See W. Loo Compl., p. 1.) William Loo obtained an entry of default against Zha on March 5, 2020, but the court set aside the entry of default and vacated the default judgment on May 14, 2025. (See 3/5/2020 CIV-100, p. 1, entering default against Zha; see also 5/14/2025 Order Re: Court's Final Tentative Ruling, pp. 6–8, setting aside the entry of default and vacating the default judgment.) Zha filed this motion to dismiss on July 28, 2026. (See Mot. Dismiss, p. 1.)

Bringing the action to trial was impracticable and futile between the date the court entered default against Zha to the date the court set aside the entry of default and vacated the default judgment. In other words, to calculate the five-year statutory period for timely bringing the action to trial, the court counts the time between the date the Complaint was filed to the date William Loo obtained the entry of default against Zha plus the time between the date the court vacated the default judgment to the date Zha filed the motion. The time between the date William Loo filed the Complaint to the date William Loo obtained the entry of default was 155 days. The time between the date the court set aside the entry of default and vacated the default judgment to the date Zha filed the motion was 440 days. Excluding the time when bringing the action to trial was impracticable or futile, only one year and 230 days passed before Zha filed this motion to dismiss for failure to bring the action to trial. Thus, the court finds that Loo did not fail to bring this action to trial in a timely manner under Sections 583.310 and 583.340.

Therefore, the motion to dismiss based on the failure to timely bring the action to trial is DENIED.

CONCLUSION

For these reasons, the motion for leave to file first amended complaint is GRANTED. Plaintiff William Loo is ORDERED to FILE SEPARATELY the proposed AMENDED COMPLAINT.

The motion to dismiss is DENIED.